

22STCV01233 22STCV01233

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Case Number: 22STCV01233 Hearing Date: July 31, 2026 Dept: 509

William E. Ayllon Vilcapoma v. General Motors LLC

DEFENDANT'S MOTION TO VACATE ORDER

MOVING PARTY: Defendant General Motors, LLC

RESPONDING PARTY(S): Plaintiff William E. Ayllon Vilcapoma

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a Song-Beverly action. Plaintiff William E. Ayllon Vilcapoma (Plaintiff) alleged he purchased a 2024 Chevrolet Silverado 1500 manufactured by defendant General Motors, LLC (Defendant) that was unsafe and did not conform to the quality and safety guidelines reasonably expected of a motor vehicle.

On May 7, 2026, Plaintiff filed a motion to recover their reasonable attorney's fees and costs. Defendant did not file an opposition.

On June 3, 2026, the Court granted Plaintiffs' motion for attorney's fees in the amount of \$22,878.50 and Plaintiff's motion for costs in the amount of \$2,763.61.

On June 26, 2026, the Defendant filed this instant motion requesting the Court to vacate the June 3, 2026, order granting attorney's fees. Plaintiff opposed.

TENTATIVE RULING

Defendant's Motion to Set Aside the June 3, 2026, Order is GRANTED.

The Court orders the June 3, 2026, Order granting attorney's fees and costs, set aside and vacated.

Within 15 days, Plaintiff may file an amended motion for attorney's fees, costs, and expenses including all fees incurred from the entry of the original order. Opposition and reply will be due pursuant to code.

Defendant is ordered to give notice, unless waived.

DISCUSSION

Motion to Set Aside Order

I. Analysis

Defendant moves to set aside the Court's June 3, 2026, order awarding Plaintiff attorney's fees in the amount of \$22,878.50 and costs in the amount of \$2,763.61. (See 6/3/26 Final Ruling.)

Defendant now moves to set aside the order of dismissal under Code Civil Procedure section 473(b). In support of relief, Defendant's counsel attests that "This case was mistakenly closed in our system due to the RFD being filed in November prior to the fee motion hearing. While the dismissal date should have been entered, the case should not have been closed in light of the issue of fees pending. Unfortunately, this case was mistakenly closed in our system due to the RFD being filed in November prior to the fee motion hearing. We inadvertently closed the case in our case management system; and because we closed the case in our case management system, all calendar entries and deadlines were closed out as well. No deadline was set to file its Opposition, and the hearing date was not calendared." (Kay Decl. ¶13.)

"Section 473, subdivision (b) provides for two distinct types of relief...Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" (Leader v. Health Indus. of Am., Inc. (2001) 89 Cal.App.4th 603, 615–16.) Here, Defendant's counsel has provided satisfactory declarations.

Further, under the discretionary provisions of section 473(b), the court "may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Pro. § 473(b).) To obtain relief under this provision, the application for relief must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding." (Ibid.) Here, considering the parties' respective arguments and counsel's declarations, the Court would be inclined to grant discretionary relief. However, considering mandatory relief is warranted, the Court need not reach a conclusion on discretionary relief.

However, the Court notes that Defendant appears to have been misled by Plaintiff's defective notice of ruling.

Plaintiff's Notice of Ruling ("NOR") states:

IT IS HEREBY ORDERED that Plaintiff's Motion for Attorney's Fees, costs and expenses is GRANTED as follows:

1. Defendant GENERAL MOTORS LLC ("Defendant") is hereby ordered to pay to Plaintiff \$22,878.50 in attorney's fees.
2. Defendant is hereby ordered to pay to a multiplier of .2 for the amount of \$4,575.70.
3. Defendant is hereby ordered to pay costs and expenses in the amount of \$2,763.61.

4. Plaintiff is to give notice and prepare the proposed Order. (*Italics added.*)

(6/22/26 Notice of Ruling.)

This is an inaccurate representation of the Court's June 3, 2026, Final Ruling. The Court's Final Ruling denied Plaintiff's request for a multiplier. It only awarded Item Nos. 1, 3 and 4 in the NOR – not Item No. 2. (See 6/3/26 Final Ruling.) Indeed, it appears that Defendant's current motion is, in part, driven by this mistaken NOR. (See e.g. Kay Decl. ¶4, ["Ultimately, Plaintiff was awarded over \$30,000, including an unwarranted multiplier."])

Perhaps, upon proper notice, Defendant may have chosen not to pursue this instant motion. Defendant is free to withdraw its motion prior to, or during the hearing, without any additional compensation to the Plaintiff.

Assuming Defendant does not withdraw their motion, the Court finds the mandatory relief provision of Code of Civil Procedure, section 473(b) applicable as Defendant's counsel has provided satisfactory declarations.

Accordingly, Defendant's Motion to Set Aside the June 3, 2026, Order is GRANTED. The Court orders the June 3, 2026, Order granting attorney's fees and costs, set aside and vacated.

Code of Civil Procedure section 473(b) states that "the court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." As stated above, Defendant's counsel submitted a declaration of fault on which relief was granted. Therefore, the award of legal fees and costs are mandatory.

Accordingly, Plaintiff is to file an amended motion for attorney's fees, costs, and expenses including all fees and costs incurred from the entry of the original order. Opposition and reply to the amended motion will be due pursuant to code. [FN 1]

IT IS SO ORDERED.

Dated: July 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Once again, it can be argued by the Plaintiff that he is entitled to additional attorney's fees for: (1) Opposing the instant motion, per CCP §473 (b) [Mandatory relief requires "reasonable compensatory legal fees and costs to opposing party."]; and/or (2) Filing new motion for fees, reply and attendance at future hearing. In short, the Defendant should seriously consider rethinking its current position and be careful for what it asks.